

Sujeesh vs Dhanya on 18 September, 2025

Mat.A No.1013 of 2024

2025 : KER: 69953

IN THE HIGH COURT OF RERALA AT E AKtJLAI4
PRESENT
TIJE HONoURABLE idR. dusTICE DEVAN RAMncHzINDRmi
a
THE HONouRABLE res. JusTICE M.B. sNEHAIAm

THURSDAY, THE 18TH DAY OF SEPTREER 2025 / 27TH BHADRA, 1947

mT.AppEAI. No. 1013 of 2024
AGENSr TRE JUDGD4ENT IN OP NO.85 OF 2022 OF FAMIiY
couRT , KUNNabncuLAM

APPEIIIIANT/PETITIONER

SUJRESH ,
ACID 38 yEARs s/O JuidELanlvREFTIL SUBRAHMANIAN,
mGAI>IVRETTII, , rolAILAiou p. o. ,
EDAPPEL VII.LACE , PONNANI TAliuK,
imlAppuRae4 DlsTRlcT, pIN - 679576
BY ADVS .
SRI.PRATHAP. S.R.K.
SHRI . DHaENeAy DREPAK
SMI.ADrmm p.R.
SEIRI. KEvIN RENro
RESPONDENT /RES PONDENT :

DHANYA, AGED 34 YEARS
D/O KUTTyERlv=EFTII, DARInpAILAN , yt7RKul.AM
DEsOM, yuRIculnM vLLI,ACE , CHAVAKKAD TAI,uK,
THRISSUR DISTRICT, PIN - 679561
BY Ays.
SRI . K . K . DREERENDRAEmI sHiqAN
SMT . N . p . asIA
SRI. pRAMrl paul vAZHzipplLLiY

THIs mTRIMONlzil, AppEAI, HAVING cond up ron HEARING CIN
18.og.2o25, THE CouRT oN TRE sinG DAY DELLvERED THE
FOLLc-G:

Mat.A No.1013 of 2024

2025 : KER: 6

DEVAN RAMACHANDRAN & M.B.SNEHALATHA, JJ.

~~-,11,11,I-----I-,Il,I-I1111-I-I-----

Mat.Appeal No.1013 of 2024

-I-, -111-,11,I,-I-11111--I--I,I--111,111111

Dated, this the 18th day of September, 2025

JUDGMENT

M.B.Snehalatha, J Today, when this appeal came up for hearing, the learned counsel appearing for both sides submitted that the entire disputes between the parties have been settled and a joint petition and memorandum of settlement agreement have been filed before this Court.

2. We have examined the joint petition and memorandum of settlement agreement and we notice that it has been signed by the parties and subscribed by their counsel. The terms of the joint petition are lawful and therefore, the settlement arrived at by the parties is accepted.

4. In view of the settlement arrived at by the parties, appellant and respondent have filed a petition under Section 138 of the Hindu Marriage Act, 1955 for dissolution of their marriage by mutual consent.

5. Both parties have affirmed that the entire disputes Mat.A No.1013 of 2024 2025 : KER: 69953 between the parties have been settled in terms of the joint petition filed by the parties.

6. We are convinced that the marriage between the spouses who are Hindus has been irretrievably broken down and there is no possibility of reunion and divorce is the viable option and all the attempts of reunion have been failed. We are also convinced that the parties have voluntarily filed the petition under Section 138 of the Hindu Marriage Act and there is no collusion between the parties.

7. We are of the view that this is a fit case to grant divorce by mutual consent on the application filed under Section 138 of the Hindu Marriage Act.

8. In view of the settlement, the application filed under Section 138 of the Hindu Marriage Act, 1955 for divorce by mutual consent is allowed and the marriage between the appellant and the respondent is dissolved by a decree of divorce by mutual consent under Section 138 of the Hindu Marriage Act, 1955 with effect from today. Mat.A No.1013/2024 is disposed of as above.

9. The parties are directed to act implicitly in terms of the joint petition and memorandum of settlement and shall comply Mat.A No.1013 of 2024 2025 : KER: 69953 all the terms therein, which do form part of the judgment.

Sd/-

DEVAN RAMACHANDRAN JUDGE Sd/.

M.B.SNEHALATHA JUDGE ab IA 1/2025 IN Mat.Appeal 1013/2024-Petition (Page-1) BEF@u!rs rml:E H@INSffiyRE HIGH G@uHT @F KHK±aLhA £ EENREELAV LAN@* ` @f £@3S im REatrfup#eat EN# : 1013 Of 2@34 asp L Sunjeestry aged #4 Y*5mrs S/@ Amt3adiveetil şufroraunanian* Armtiadeveetil Koiatamtis SOS E£#ppeal Vlhage, Pomnahi Ythluk, Malaptirarm

"istrfet - \$7es76 2* E}hanyfty aged 41 years, Bfo Kutteriveettfl rmaprhan, yuckutam B€asrem, Pumltfl:}ruhaulam Vitilage, €havakekd "tlk, Thrissur District -

S¥sel
REPGREERT
Nil

ds per the reed ion dated

se{tlermem @m REllowiHg. tgr

i} The ELppetlaEL€ is 'the ls\fi

Mat.Appeal, Both hteng t® the HiHidH rersgiCiH. Their mandagg wELf solemnined undgr Hindu rituals and rites on 13.®6,2\$13. The Appelld"

Sn the #fae"ndg oJ d€s¥res®n had fiJgd for divorce a n the H®n'tife Famtry €©ult* Kunnarmkuham as OP 85/3022. £t was dismissed and thus MatAppeal 1\$1Bra®24 was filed. Tine responderlt had filed ®P gor2922 F®r retur" ®f g\$1d rand M€ 3Ora®33 for fflains€ELam€ iffl the RESn'ble gram fly Goult* K"ren&fflk"lam and i* was am@wed. Aggrieved fry this FSO VERIFIED -31 IA 1/2025 IN Mat.Appeal 1013/2024-Petition (Page-2) REffi£.jfty>pffgffii 1SS&ma5£4 grffids R`p€EL"} 436;28¥4 is f31ed xpifei#it is peffidiing ifeef®re this RICRE' ifelg €4®ur& 2} Im the ,Mediati©n hutd ffiffi 1?so9/3@2S in Meat.Appeal 1013/a®24 froflt pareies are agFaed, f®g di¥®re€ 3md €d# ifee #£*nged. The rmediStit3fl &greeffleRE€ fflade betwe@fl the prrdas is ffFodueed herewith as fuHEHL©se. ife.

3} Withi reg&rdes t® Mm€.rfugrB€ai Eti£8IE®34 fGr return o# g®lfi anfi rm®ney and RP{FC*2&/2ft34 f®# rmaffitemanee win courimene. All cases pending t3gfore the family coum and all fasedrrs m®t meffltiGmed hereiB stroll proceed. COUNSEL FSR "EAPPLI€ANT8 EE€fiELE FSO VERIFIED -31 IA 1/2025 IN Mat.Appeal 1013/2024-Annexure A (Page-3)